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MIL-HDBK-245E w/CHANGE 2

21 September, 2023

SUPERSEDING

MIL-HDBK-245E Change 1

12 September, 2022

DEPARTMENT OF DEFENSE

HANDBOOK

PREPARATION OF STATEMENT OF WORK (SOW)

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FOREWORD

1. This handbook is approved for use by all Departments and Agencies of the Department of Defense.

2. This handbook is for guidance only and cannot be cited as a requirement in any DoD contract. Contractors or suppliers may utilize this document for guidance in preparing responses to Government requests for proposals.

3. This handbook provides guidance to create a Statement of Work (SOW) applicable to the possible types of acquisitions across the acquisition life cycle. The SOW specifies the tasks, also referred to as work requirements, to be accomplished by the contractor. The execution of those tasks is left to the contractor's discretion.

4. A sample SOW, reflecting format and content expectations, is provided in the Appendix.

5. Tasks or Work requirements, should be specified in the SOW. All data requirements regarding delivery, format, and content should be in the Contract Data Requirements List (CDRL) in conjunction with the appropriate Data Item Description (DID) as described in this handbook. Redundancy invites conflict and must be avoided.

6. Comments, suggestions, or questions on this document should be addressed to the current POC in the Acquisition Streamlining and Standardization Information System (ASSIST) online database at https://assist.dla.mil since contact information can change.

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SUMMARY OF CHANGE 2 NOTIFICATIONS

1. Added ASSIST, CWBS, DBS, DSP, EM, IT, LRIP, NGS, ORD, PIO to the acronym list
2. Added a reference to 5.2.6.3
3. Added "(if applicable)" to 4.6.7 for both subparagraphs f. and h.
4. Section 3.2 of the **Notional example of STATEMENT OF WORK EXAMPLE,** changed from "The progress, status, and management reports." to "The contractor shall prepare progress, status and management reports."
5. Section 3.6 changed from "Create" to "The contractor shall create"
6. Section 3.10 changed from "These reviews will" to "These reviews shall"
7. Section 3.13 changed "All baselines and changes will" to "All baselines and changes must
8. Section 3.16 changed: The contractor will conduct" and "The contractor will develop" both to "The contractor shall"
9. Section 5.2.6.3 removed "Will" expresses a declaration or purpose or intent..... calendar days." from the first para since it is listed in the subparagraph a.
10. Added additional comment to section 4.10 e as well as a note to reference MIL-STD-881 for further information on CWBS

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1. SCOPE

1.1 Scope. This handbook applies to the preparation of a SOW for organizations acquiring deliverables and/or services. A SOW describes the essential and technical requirements for items, materials, or services including standards used to determine whether requirements have been met.

1.2 Background. This handbook addresses preparation of a SOW. A SOW is often used when tasks can be clearly and unambiguously defined. There are other documents that can be used depending on the contracting strategy. To assist the reader's understanding of related documents the handbook will cover the following:

a. A Statement of Objectives (SOO) is a Government prepared document incorporated into the Request for Proposal (RFP) that states the overall solicitation objectives.

b. A Performance Work Statement (PWS) describes the work in terms of what is to be the required output rather than how the work is to be accomplished. Typically, a PWS is used in lieu of a SOW for the Acquisition of Services.

The Quality Assurance Surveillance Plan (QASP) is the document Government personnel use to assess contractor performance. Using the Requirements Roadmap ensures that each performance objective is linked to a method of inspection incorporated in the QASP. The QASP identifies what is going to be inspected, the inspection process, and who will do the inspecting. The results of those inspections will then be used to document contractor performance.

This handbook implements the acquisition policies reflected in Department of Defense Instruction (DoDI) 5000.02 and is aligned with the acquisition milestones and phases discussed in Section 5. The reader is encouraged to visit the DoD Issuances' website for additional instruction on the selected acquisition pathway and specific instructions found here: https://www.esd.whs.mil/Directives/issuances/dodi/. This handbook is for a SOW developed for use in DoD solicitations and contracts and provides a framework that results in a complete description of the work required. This handbook is for guidance only and cannot be cited as a requirement.

2. APPLICABLE DOCUMENTS

2.1 General. The documents listed below are not necessarily all of the documents referenced herein, but are those needed to understand the information provided by this handbook.

2.2 Government documents.

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STANDARDS DEPARTMENT OF DEFENSE

MIL-STD-881 - Work Breakdown Structures for Defense Material Items.

MIL-STD-961 - Defense and Program-Unique Specifications Format and Content.

(Copies of these documents are available online at https://quicksearch.dla.mil).

GUIDANCE

Acquisition Guidebooks & References

(Copies of this guide as well as other documents that can be used to identify guidance in various areas are currently available online at https://usg01.safelinks.protection.office365.us/?url=https%3A%2F%2Faaf.dau.edu%2Fguidebooks%2F&data=05%7C01%7Cdaniel.r.deras.ctr%40us.navy.mil%7Cb15c762281184635f00708dba9543483%7Ce3333e00c8774b87b6ad45e942de1750%7C0%7C0%7C638289951348844593%7CUnknown%7CTWFpbGZsb3d8eyJWIjoiMC4wLjAwMDAiLCJQIjoiV2luMzIiLCJBTiI6Ik1haWwiLCJXVCI6Mn0%3D%7C3000%7C%7C%7C&sdata=EI%2FlExoRaKF%2BaqJqHqO2Ly%2BehFd3DxproefcGmuBGoo%3D&reserved=0).

INSTRUCTIONS AND MANUALS DEPARTMENT OF DEFENSE

DoDI 5000.02 - Operation of the Adaptive Acquisition Framework

DoDM 4120.24 - Defense Standardization Program (DSP) Procedures

DoD 5010.12-M - Procedures for the Acquisition and Management of Technical Data

(Copies of these documents are available online at https://www.esd.whs.mil/DD/DoD-Issuances/).

Chairman of the Joint Chiefs of Staff Instruction (CJCSI) 5123.01 - Charter of the Joint Requirements Oversight Council and Implementation of the Joint Capabilities Integration and Development System. (Copies of this document are available online at https://www.jcs.mil/library/).

FORMS DEPARTMENT OF DEFENSE

DD Form 1423-1 - Contract Data Requirements List (CDRL)

(Copies of this document are available online at https://www.esd.whs.mil/DD/DoD-Issuances/).

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2.2.1 Specifications, standards, handbooks, and other Government documents. The following specifications, standards, and handbooks form a part of this document to the extent specified herein.

DEFENSE FEDERAL ACQUISITION REGULATION SUPPLEMENTS (DFARS)

DFARS 234 - Major System Acquisition

DFARS should be referred to for additional requirements associated with certain types of procurements, e.g. personal services, commercial items, etc.

(Copies of these documents are available online at https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html).

FEDERAL ACQUISITION REGULATION

FAR 52.215-8 - Order of Precedence Uniform Contract Format

(Copies of these documents are available online at https://www.acquisition.gov/browsefar).

2.3 Non-Government publications. Non-Government publications form a part of this document to the extent specified herein. Unless otherwise specified, the issues of documents are those cited in the solicitation or contract.

3. DEFINITIONS

3.1 Acronyms.

Acronym	Term
AAF	Adaptive Acquisition Framework
ASSIST	Acquisition Streamlining and Standardization Information System
ASTM	American Society for Test and Material
CDRL	Contract Data Requirements List
CJCSI	Chairman of the Joint Chiefs of Staff Instruction
CLIN	Contract Line Item Number
CM	Configuration Management
CSA	Configuration Status Accounting
CWBS	Contract Work Breakdown Structure
DBS	Defense Business Systems

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DCMS	Director, COMSEC Material System
DFARS	Defense Federal Acquisition Regulation Supplement
DID	Data Item Description
DISR	DoD Information Technology Standards Registry
DMSMS	Diminishing Manufacturing Sources and Material Shortages
DoD	Department of Defense
DoDD	Department of Defense Directive
DoDI	Department of Defense Instruction
DSP	Defense Standardization Program
EKMS	Electronic Key Management System
EM	Electromagnetic
ESD	Electrostatic Discharge
ESOH	Environment, Safety, and Occupational Health
FAR	Federal Acquisition Regulation
FIPS	Federal Information Processing Standards
FRACAS	Failure Reporting and Corrective Action System
FRP	Full Rate Production
FTE	Full Time Equivalents
GFE	Government Furnished Equipment
GFP	Government Furnished Property
GFI	Government Furnished Information
HSI	Human System Integration
IT	Information Technology
IUID	Item Unique Identification
JCIDS	Joint Capabilities Integration and Development System
LRIP	Low-Rate Initial Production

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MNS	Mission Need Statement
NGS	Non-Government Standard
ODC	Other Direct Costs
ORD	Operational Requirements Document
PCA	Physical Configuration Audit
PHST	Packaging Handling, Storage and Transportation
PIO	Provisioning Items Ordering
PMR	Program Management Reviews
POC	Point of Contact
PWS	Performance Work Statement
QASP	Quality Assurance Surveillance Plan
RFP	Request for Proposal
S/HSM	Significant or Highly Sensitive Matter
SOO	Statements of Objectives
SOW	Statement of Work
SRD	System Requirements Document
WBS	Work Breakdown Structure

3.2 Definitions. For the purposes of this handbook, the following definitions apply:

3.2.1 Standardization Document. A generic term for a document used to standardize an item of supply, process, procedure, method, data, practice, or engineering approach. Standardization documents include defense specifications, standards, and handbooks; federal specifications and standards; guide specifications; commercial item descriptions; and non-Government standards.

3.2.2 Acquisition Streamlining and Standardization Information System (ASSIST). The official database containing information about standardization documents used in the DoD.

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ASSIST provides electronic access to Government standardization documents at https://assist.dla.mil.

3.2.3 Non-Government Standard (NGS). A national or international standardization document developed by a private sector association, organization, or technical society that plans, develops, establishes, or coordinates standards, specifications, handbooks, or related documents. This term does not include standards of individual companies. NGSs adopted by the DoD are listed in the ASSIST database.

3.2.4 Performance Work Statement (PWS). A statement of work for performance-based acquisitions or services that describes the required results in clear, specific and objective terms with measurable outcomes.

3.2.5 Statement of Objectives (SOO). A Government prepared document incorporated into the Request for Proposal (RFP) along with the SOW that states the overall solicitation objectives.

4. GENERAL GUIDANCE

4.1 General. The SOW should specify in clear, understandable terms the work to be done in developing or producing the goods to be delivered or services to be performed by a contractor. The goods and services must be consistent with the appropriation to be used. Preparation of an effective SOW requires both an understanding of the goods or services that are needed to satisfy a particular requirement and an ability to define what is required in specific, quantitative terms. A SOW prepared in explicit terms will enable offerors to clearly understand the Government's needs. The appropriation should align with the goods and services identified in the SOW "Requirements or Scope." The appropriations type (only) should be cited along with the SOW Requirements or Scope paragraph heading or subparagraphs if multi-appropriations are used. This facilitates the preparation of responsive proposals and delivery of the required goods or services. A well-written SOW also aids the Government in conduct of the source selection and contract administration after award.

4.2 Relationship between SOW and appropriation. The SOW defines (either directly or by reference to other documents) all work (non-specification) performance requirements for contractor effort. Appropriations (financial, or Color of Money) are made by Congress, through legistation, for specified purposes and cannot be expended for purposes other than that stipulated. Ensure that the “efforts and services” contained in the SOW are consistent with the appropriation sought to be charged from a Purpose-Time-Amount standpoint. The work tasks called out in the SOW must be consistent with appropriation(s) being allocated for that task in the solicitation. The SOW developer should coordinate with their comptroller to ensure consistency between task language and the appropriation purpose.

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4.3 Relationship between the SOW and contract. The SOW should be compatible with the following:

a. Requirements that are mandated by law, established DoD policy or necessary for effective management of its acquisition, operation, or support.

b. At the outset of development, system-level requirements, found in the SRD, should be specified in terms of mission-performance, operational effectiveness, and operational suitability.

c. During all acquisition phases, solicitations and contracts, the SOW should state management requirements in terms of results needed rather than "how to manage" procedures for achieving those results.

4.4 SOW and contractor performance. After contractor selection and contract award, the contract SOW becomes a standard for measuring contractor performance. Consequently, the SOW author must consider the contractual and legal implications of the SOW during its preparation. As the contracted effort progresses, the Government and the contractor will refer to the SOW to determine their respective rights and obligations. In this respect, the SOW "defines the contract and is subject to the interpretations of contract law." The SOW must clearly define the work to be performed, since the language detailing the contractor's effort may be pertinent to legal questions concerning the scope of work.

4.5 Relationship of contract sections to the SOW. The Government RFP or solicitation defines the Government's requirements and constitutes the cornerstone of the program, as it ultimately shapes the resultant contract. The SOW preparer should work closely with the overall RFP, SRD drafter and all contract section authors to achieve consistency. Data deliverables are identified in CDRL exhibits to the contract. Each Contract Line Item Number (CLIN) in Section B needs to have corresponding work outlined in the SOW. Section F (Deliveries or Performance) requires delivery of data in accordance with these exhibits. The SOW should not conflict with the language in Section H. Clauses that may apply to a resulting contract are cited in Section I (Contract Clauses). Section J is a listing of all exhibits and attachments to the contract. The SOW could be included in Section C or as an attachment within Section J of the contract. Sections K, L, and M apply only to competitive solicitations. They are contained at the end so that when the contract is awarded, they can be removed. Section K includes representations, certifications, or the submission of other information by offerors. Section L includes instructions, conditions, and notices to offerors or respondents to guide in preparing their offers or bids in a manner that is responsive to the Government's RFP. Section M identifies the evaluation factors that will be utilized in awarding the contract. It contains the evaluation criteria listed in order of importance and other factors for award. The SOW and Work Breakdown Structure (WBS) (as discussed in paragraph 4.11) are utilized in preparing the corresponding CDRL, Section L, Section M, and other parts of the RFP/contract (see Figure 1).

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Readers are encouraged to download and review the Contract Strategy Fact Sheets. The fact sheets can be used as a Government contacting quick reference. The Contract Strategy Fact Sheets are located at: https://dau.edu/tools/t/contract-strategy-fact-sheets

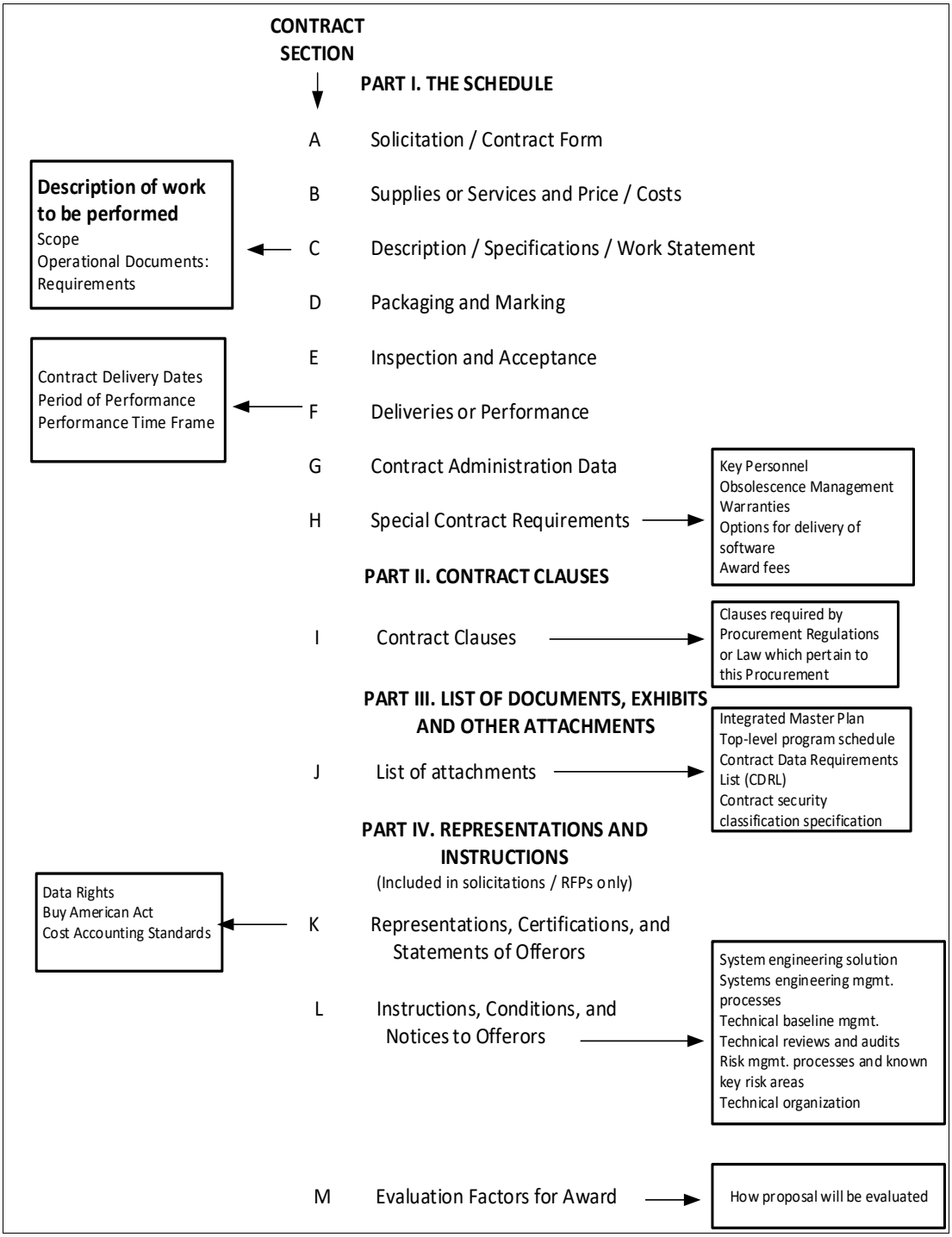


FIGURE 1. Relationship of Government solicitation/contract sections to SOW/SOO

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Table 1 is intended to reduce internal RFP inconsistencies and aid in proposal preparation. It is provided as a reference tool for information only. In the event of conflict between this matrix and any other section of the RFP, the other section may take precedence. Because of the complex interrelationships among RFP/contract documents, use of a cross-reference matrix may be helpful (see Table 1).

	WBS Element	SOW Paragraph	CLIN	CDRL	Instructions To Offerors (SEC L)	Evaluation Factors (SEC M)	Requirement Located
Design B	2.2	3.2.2	0001	N/A	3.B.1	Tech 1.A	V1-p.64
Build A	2.3	3.2.3	0002	A001	3.B.2	Tech 1.B	V1-p.75

TABLE 1. Cross reference matrix

4.6 Format. The format for the SOW is as follows (subject to variations specified in Section 5 for specific types of SOW's):

SOW Section	Title
1	SCOPE
2	APPLICABLE DOCUMENTS
3	ACRONYMS and DEFINITIONS
4	REQUIREMENTS

Deviations from the standard format may be made by the author when necessary to accommodate program needs

4.6.1 SOW Section 1-SCOPE. The scope paragraph should be used to clearly define the boundaries of the project scope. Defining those boundaries will ensure that requirements are written to support the scope, resources are allocated effectively, and aids in the prevention of work duplication. Ensure the scope paragraph defines the breadth and limitations of the work to be done. Separate indentures, such as introduction, background, assumptions, etc. under this section are used in SOWs to provide additional information on complex acquisitions. Note: Background information should be limited to only that information needed to acquaint the proposer with the acquisition requirement.

4.6.2 SOW Section 2-APPLICABLE DOCUMENTS. Military handbooks, Government instructions, service regulations, technical orders, and policy letters, as a type, are not written in language suitable for contract application. In the event requirements of these documents

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must be included in a SOW, excerpts only should be used and should be made into either a clear task statement or a clear reference statement, **and not for contract compliance**. Any documents called out in Section 2 of the SOW should have the specific version referenced, i.e., by date or by revision letter. Reference only the absolute minimum applicable specifications and standards needed. As an alternative, specific paragraphs or sections of the applicable document may be identified in this section. Selectively invoke documents only to the extent required to satisfy the existing requirements. (The tailoring of reference document requirements should result in a reduction to the overall cost otherwise incurred if all requirements stated in a document are invoked).

The requirement for any specification and standard should be justified before being placed in Section 2 of the SOW. Therefore, Section 2 should not be prepared until the completion of Section 4, General Requirements, is complete.

4.6.3 SOW Section 3-ACRONYMS and DEFINITIONS. When a Statement of Work uses terminology for which a common definition does not exist and is intended for a specific manner within the Statement of Work, an ACRONYMS and DEFINITIONS section may be used as Section 3 to provide a clear and common understanding of the requirements within the statement of work.

Definitions of all key terms used in the SOW will be stated in sufficient detail to provide for adequate clarity, unless the terminology is generally accepted and not subject to misinterpretation. Definitions may be included by reference to another document.

When a standard definition exists, a different definition shall not be used. Definitions will be listed in alphabetical order.

4.6.4 SOW Section 4-REQUIREMENTS. Specific tasks or work requirements are identified in SOW Section 4. These tasks, developed to satisfy program needs, are the contractor work requirements. Although the source selection evaluation board is responsible for the examination of SOW requirements in order to eliminate nonessential requirements, such examinations may be accomplished by the functional technical groups during development of the SOW. Well written SOW requirements have the following attributes:

a. Specifies requirements clearly to permit the Government and offerors to estimate the probable cost and the offeror to determine the levels of expertise, manpower, and other resources needed to accomplish technical objectives and goals. The Government specifies funding types align with the requirements needed to be accomplished.

b. States the specific requirements in such a way that the contractor knows what is required and can complete all tasks to the satisfaction of the contract administration office.

c. Written so specifically that there is no question of whether the contractor is obligated to perform specific tasks. (See section 5.2.6.3)

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d. Selectively invokes documents only to the extent required to satisfy the existing requirements. (The tailoring of reference document requirements should result in a reduction to the overall costs otherwise incurred if all requirements stated in a document are invoked.)

e. Separates general information from direction so that background information and suggested procedures are clearly distinguishable from contractor responsibilities.

f. Avoids directing how tasks are to be performed and states only what results are required.

g. The form of the requirement is a singular statement. One requirement will address the need that is necessary to be present in a product, service, or result. There will only be one need per statement.

h. Requirements should be written to the lowest level (decomposed). This aids in showing exactly what needs to be done and prevents multiple requirements in one statement. Gives managers more flexibility to allocate resources where needed.

i. Requirement statement should be explicit. Can only be interpreted one way by the project stakeholders.

4.6.5 SOW additional sections. If more clarity is needed, then additional sections may be added to satisfy program needs.

4.6.6 SOW DO's and DON'Ts.

a. DO's:

1. Only one task should be provided in a numbered paragraph or subparagraph to facilitate costing, referencing and tailoring of tasks.
2. Select a competent team with an experienced team leader to develop a SOW.
3. Exclude "how to" requirements since the offeror should be tasked to provide the deliverables under the contract in the most cost-effective manner.
4. Use the program WBS, as discussed in Section 4.11 in this handbook to outline the required work effort.
5. Explicitly define any tailored limitations of all standards and specifications cited.
6. Exclude design control or hardware or software performance parameters because these requirements should be covered in a specification.
7. Give priority to commercial items over specification items when the former satisfies military requirements.
8. Ensure SOW is clear of any language for tasks which are inherently Governmental functions.

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9. Use authoritative websites, publications, technical orders, and any other authoritative document when creating a SOW.
10. An acronym list should be included in section 3.

b. DON'T:

1. Order, describe, or discuss CDRL data.
2. Discuss a Data Item Description (DID). Although the text of the SOW should not include the data format and content preparation instructions and/or data delivery requirements, a DID number listed on the CDRL may be cross-referenced in the SOW.
3. Specify technical proposal criteria or evaluation factors.
4. No prescribed funding amounts.
5. Specify design control parameters or the performance of hardware.
6. Impose on the contractor a Government format when a contractor format is acceptable.
7. Over specify. Specify only what is required and let the contractor establish the best method to fulfill the requirement.
8. Invoke in-house management instructions.
9. Use the SOW to establish or amend a specification.
10. Use vague terms like "as required", "as needed" or anything requiring judgement. Use language specific to standards.
11. Discuss the delivery schedule, there are other places in the contract for that information.

4.6.7 Title page. The title page, or cover page should be used and include the following information:

a. Classification Marking including CUI in accordance with Service or Department regulations;
b. SOW title;
c. SOW Revision (if applicable);
d. Approval or release date;
e. Procurement or release number (or contract number);
f. Distribution statement (if applicable);
g. Identity of the preparing organization (see Figure 2).
h. Export Control Warning Statement (if applicable);
i. Prepared by (optional)

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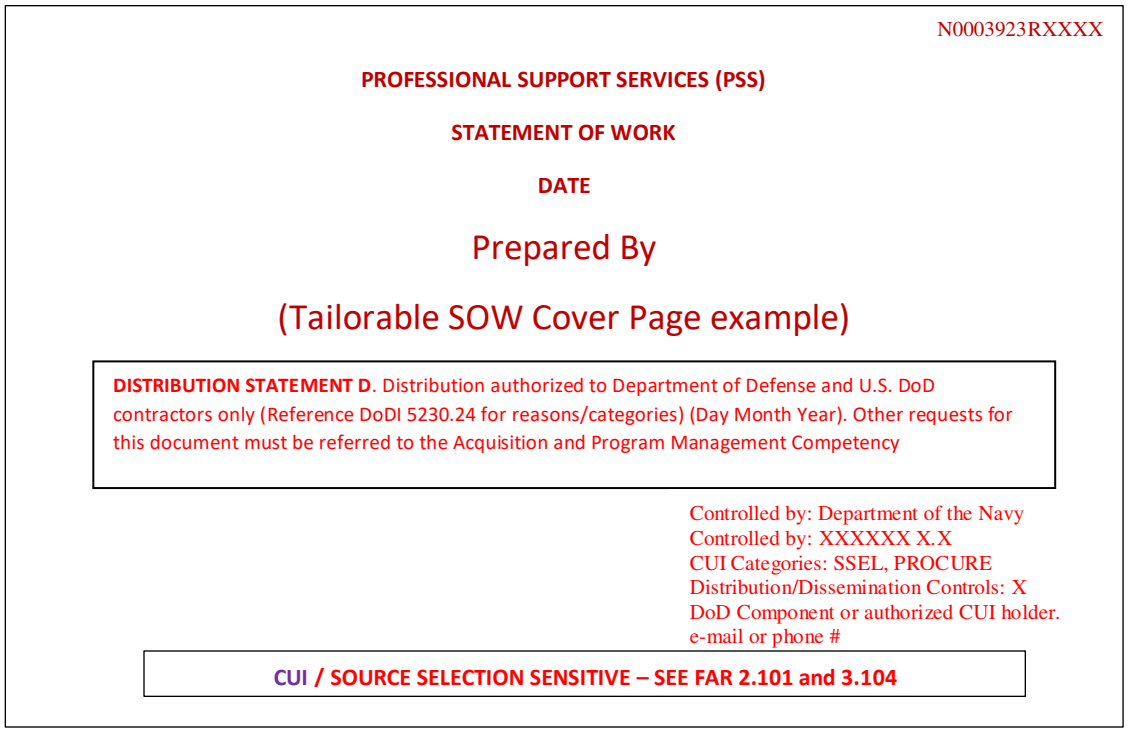


FIGURE 2. Tailorable Sample SOW Title Page

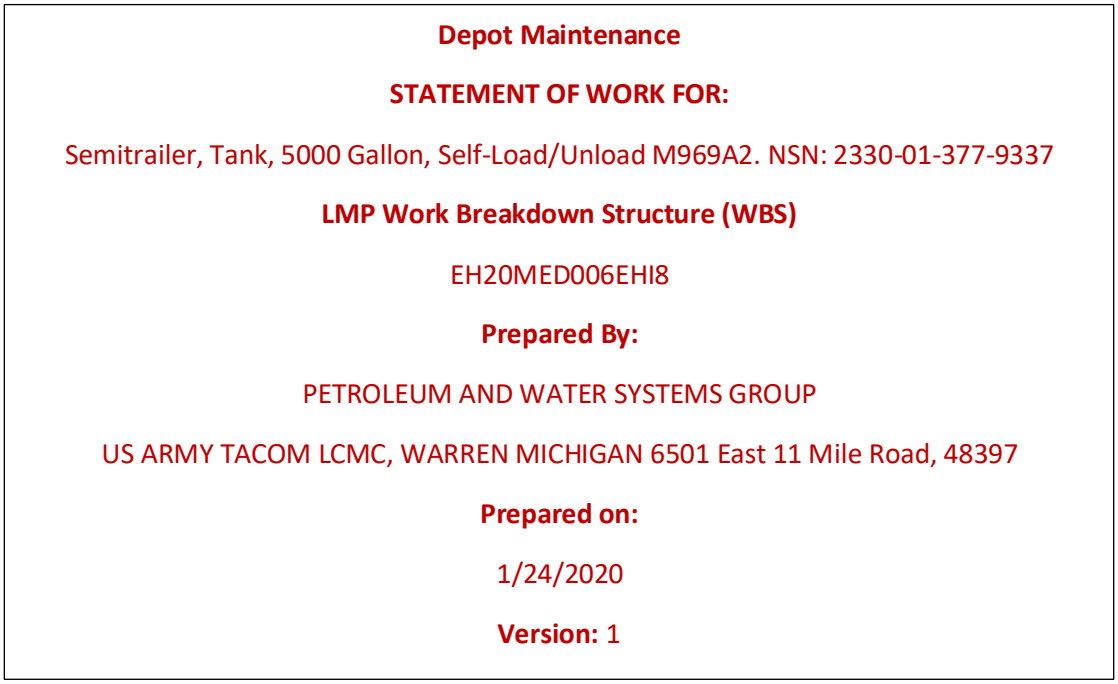


FIGURE 3. Army example of a Statement of Work cover page using a tailored alternative format

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4.6.8 Table of Contents. A table of contents may be used when the SOW exceeds five pages providing the number, title, and page number of each titled paragraph, figure, table, and appendix. For data in a database or other alternative form, this information may consist of an internal or external table of contents containing pointers to, or instructions for accessing, each paragraph, figure, table, and appendix or their equivalents.

4.6.9 Paragraph numbering and identification. Each paragraph and subparagraph should be numbered consecutively within each SOW section using a period to separate the number representing each sublevel. Paragraph numbering should be limited to the third sublevel, if possible, as shown in the following example for SOW Section 4:

General Requirement	4
1st Sublevel	4.1
2nd Sublevel	4.1.1
3rd Sublevel	4.1.1.1

Paragraph breakdowns should be kept to the level necessary to clearly define required contractor tasks. Each paragraph and subparagraph should be titled. Each title should clearly identify the funding type along with the paragraph heading or sub-paragraphs if multi-appropriations are used. Clearly defined tasks and the SOW language used to describe the task will ensure efforts do not mix funding types.

4.7 Data management. As the contractor performs and completes the SOW tasks, data is developed. Proper tailoring and scheduling of data submission items requires particular attention by the SOW preparers. When a DID doesn't specify contractor format it should be added to the CDRL if contractor format is suitable. The SOW preparer should make every effort to ensure that the CDRLs and DIDs reflect the anticipated need for data and to ascertain whether the specific data required will in fact be generated and available.

4.8 Use of CDRL data. The ordering and delivery of data which the Government requires are specified and scheduled through the use of the CDRL, DD Form 1423-1. The SOW author should exercise considerable care and attention to the data delivery implications of the SOW. While data may be inherently generated by a work task, recording and delivering the data in a specific format are cost drivers that must be considered when preparing the SOW and CDRLs. The CDRL should only require data specifically generated in a SOW work task. If certain elements of data are not needed, the DID should be tailored downward noting deletions in CDRL Block 16.

4.9 Data Item Description. DIDs are DoD-approved documents that describe the format and content of the data requirements. After the need for recording and delivery of data

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resulting from a work task has been determined, appropriate DIDs should be selected from ASSIST using the search feature. The SOW, and not the DID, must task the contractor to perform work. At the end of each SOW task paragraph, the DIDs and/or CDRL that are associated with the effort described in the task may be identified in parentheses.

To understand the relationship of a SOW to the CDRL and DID (see Figure 4), consider the example where the SOW includes a requirement that, "the contractor shall establish, implement and control a Configuration Management (CM) program." The associated CDRL would order a CM data item and identify due date, distribution and other such parameters while the DID would provide the format and content requirements for that particular CM item, with non-essential references tailored out of the DID. Data items should only be added if the Government will formally accept submittal from the contractor. Tasking statement example, "Contractor shall comply with the Supplier's Configuration Management Plan in accordance with DID DI-SESS-80858".

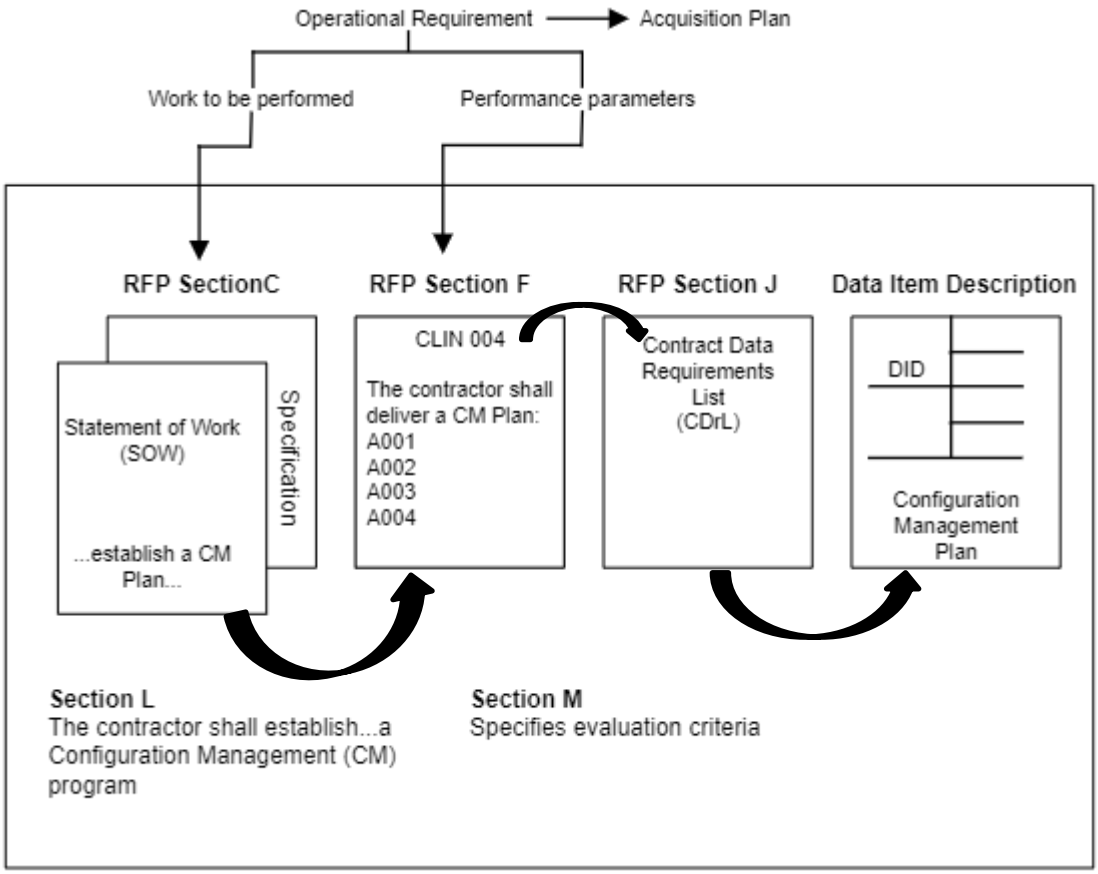


FIGURE 4. SPEC-SOW-CDRL-DID Relationship

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4.10 SOW development. Section 4 of this handbook describes how the SOW content changes depending on which acquisition pathway it supports.

A systematic process is essential for SOW development. The following steps are an integral part of that process:

a. Conduct market research to determine whether commercial items or non-developmental items are available to meet program requirements.

b. Review the requirement documents which authorize the program and define its basic objectives. Complete a risk assessment and expound the basic objectives of the program to incorporate the major technical and programmatic risks.

c. Review the various DoD/services/joint services requirements documents for program management, acquisition and control impact.

d. Prepare a bibliography citing the specific portions of all applicable governing instructions, directives, specifications and standards with which the program must comply. Keep these requirements to the absolute minimum and do not include citing's that direct "how" work is to be performed.

e. Once the contract is awarded, the contractor will expand the Contract Work Breakdown Structure (CWBS) as the initial step in the planning process. Note: For further information on CWBS review MIL-STD-881

f. For each RFP/contract defined, prepare a SOW from the objectives identified.

4.11 Work Breakdown Structure. A WBS should be used in developing a SOW. MIL-STD-881 should be used for guidance. A WBS provides the framework for a disciplined approach of structuring and defining the total project or program. It is a product-oriented family tree composed of equipment, services, and other items which make up the project or program, and provides the basis for progress reporting, performance and engineering evaluations, and financial data reporting. When preparing the SOW, a complete application of a WBS may not be necessary in all programs, however, the underlying philosophy and structured approach can and should be applied. The CLIN and the SOW should be constructed to correlate with the WBS. Use of a WBS during SOW development facilitates a logical arrangement of the SOW elements and provides a convenient checklist to trace all necessary elements of the program and ensure that they are addressed in the SOW. The WBS should evolve into greater detail as the system definition and acquisition phases advance. For each phase, the WBS must be in sufficient detail to cover all the required work in that phase, as well as to produce the technical information needed for the next phase. The WBS may be tailored to the minimum level required to manage program risk.

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5. DETAILED GUIDANCE

5.1 SOW phasing and results. All programs, including highly classified programs, should accomplish certain core activities. These activities must be tailored to satisfy an identified need using sound business practices. The acquisition process follows one of six acquisition pathways and is structured in logical phases separated by major decision points called milestones (See DoDI 5000.02). Each decision point is an opportunity for a review to determine if the program should continue. The decision to enter the next phase or not is based on results obtained in the acquisition phase preceding that milestone. SOW requirements are tailored to support the acquisition of information, hardware, software, technical data and the logistic support required during any particular life cycle phase.

5.2 Adaptive Framework. The following are pathway descriptions for programs to adopt and tailor. Each pathway is governed by separate policies, the program manager should "tailor-in" the processes, reviews, and documents necessary for their program for their decision authority approval. Readers are encouraged to review DoDI 5000.02, section 4.1 and the DAU hosted AAF online resources located at: https://aaf.dau.edu/ for additional information.

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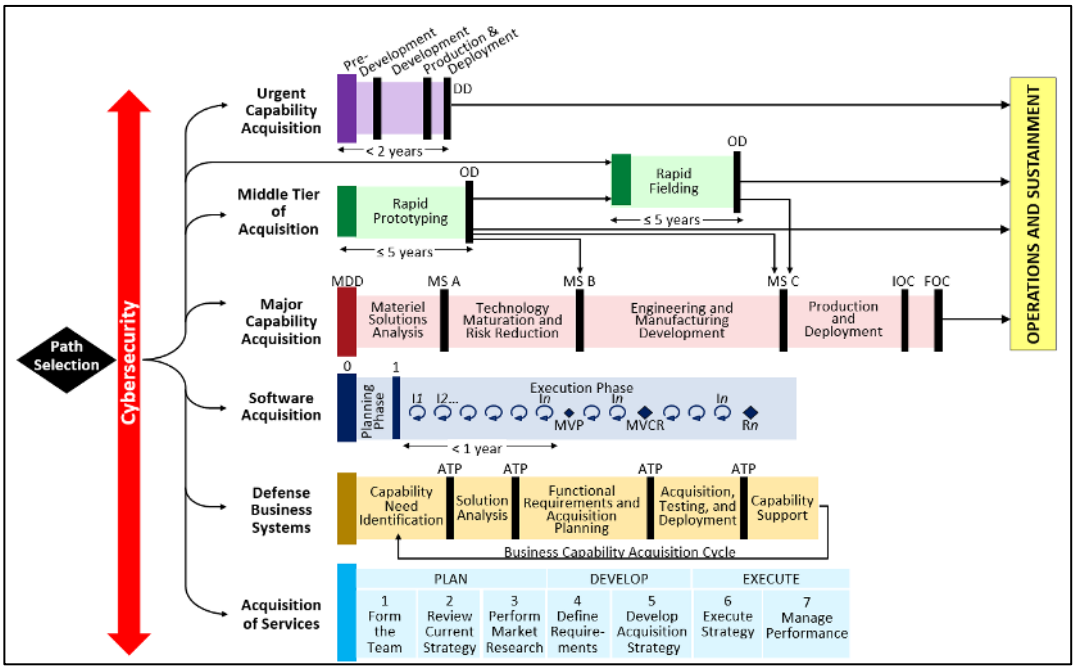


FIGURE 5. Additive Acquisition Framework (AAF)

Pathway descriptions:

a. Urgent Capability Acquisition: The purpose of the Urgent Capability Acquisition (UCA) pathway is to field capabilities to fulfill urgent existing and/or emerging operational needs or quick reactions in less than 2 years.

b. Middle Tier of Acquisition (MTA): The Middle Tier of Acquisition pathway is used to rapidly develop fieldable prototypes within an acquisition program to demonstrate new capabilities and/or rapidly field production quantities of systems with proven technologies that require minimal development. There is a five year requirement for both RP and RF programs.

c. Major Capability Acquisition: Major Capability Acquisition is used to acquire and modernize military unique programs.

d. Software Acquisition: This pathway is to facilitate rapid and iterative delivery of software capability to the user.

e. Defense Business Systems (DBS): This pathway is used to acquire information systems that support DoD business operations. This pathway applies to defense business capabilities and their supporting business systems, including those with "as-a-service" solutions to include: financial and financial data feeder; contracting; logistics; planning and budgeting; installations management; human resources management; training and readiness systems; and may also be used to acquire non-developmental, software intensive programs that are not business systems.

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f. Acquisition of Services: This pathway is for the acquisition of contracted services with a total estimated value at or above the simplified acquisition threshold.

Note: *For additional information on the AAF see the DoDI 5000.02.*

5.2.1 Determining user needs and identifying deficiencies. All acquisition programs are based on identified, documented, and validated mission needs. Mission needs result from assessments of current and projected capability requirements. Mission needs may establish a new operational capability, improve an existing capability, or exploit an opportunity to reduce costs or enhance performance. If the potential solution results in a new program, an appropriate level review should be held to document its validity and joint potential, and confirm that the requirements have been met or considered.

5.2.2 Example. A notional example of a Statement of Work is provided in figure 6 below. (Actual SOW should follow the needs of the acquisition)

Notional example of STATEMENT OF WORK EXAMPLE

1. SCOPE

1.1 Background (Optional)

2. APPLICABLE DOCUMENTS

2.1 Applicable documents. All documents invoked in the requirements section of the SOW must be listed in this section by document number, title, date or by revision letter. These documents may include Standards, Specifications and other reference documents needed to identify and clarify the work task or deliverable product. DoD and Departmental Instructions should not be used in the SOW to control contractor effort. Also, any document listed in this section must be invoked and selectively tailored to meet minimal needs of the planned procurement in the requirements section. The version of any document cited in the SOW should be specified in this section.

2.2 Department of Defense specifications.

2.3 Department of Defense standards.

2.4 Other Government documents.

2.5 Industry documents.

3. GENERAL REQUIREMENTS (FUNDING TYPE)

3.1 General requirements. (For guidance only)The content of the SOW is dependent on which phase of the acquisition cycle you are in. A SOW for a Research &Development effort is different than production. Remember work requirements are stated in the SOW, not how to build it. The funding type identified at the "GENERAL REQUIREMENTS" paragraph implies one funding type to support the effort.

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3.2 Program Management. The contractor shall prepare progress, status and management reports. The reports address the progress of the effort, status of any problem resolution or identification of new problems, summary of safety-related actions, significant events, and updated contract schedule.

a. CDRL Deliverable(s):

b. Progress, Status, and Management Report

3.3 Program Reviews. The contractor shall conduct quarterly reviews, report on cost, schedule, technical progress, program risks and mitigations, and technical performance measures. The contractor shall present the Risk Management Database and Risk Management Chart as part of the Project Management Review Presentation Materials.

a. CDRL Deliverable(s)

b. Conference Agenda

c. Presentation Material

d. Report, Record of Meeting / Minutes

3.4 System Engineering (SE). The contractor shall ensure the effective development and delivery of capability through the implementation of a balanced approach with respect to cost, schedule, performance, and risk using integrated, disciplined, and consistent SE activities and processes. SE-related policy, guidance, specifications, and standards are intended to successfully guide the technical planning and execution of a program across the acquisition life cycle.

3.5 Environment, Safety, and Occupational Health (ESOH). The contractor shall perform ESOH hazard identification and risk management in accordance with MIL-STD-882. The safety assessment identifies safety-related hazards that may be present in the physical system configuration, including specific procedural controls and precautions that should be followed for risk mitigation. Identify hazardous materials contained in or used with the system (Note a CDRL should be included which will include required content). Include environmental and occupational health risks in ESOH assessments. The contractor shall identify hazardous materials for systems per DoDI 5000.85 and DoDI 5000.88.

3.6 Reliability and Maintainability Program. The contractor shall create and maintain a Failure Reporting and Corrective Action System (FRACAS) to document all problems found during the manufacturing, fabrication, assembly, test, operation, and maintenance aspects of the system life cycle for each system produced.

a. CDRL Deliverable(s):

b. FRACAS Report

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3.7 Data. The contractor shall include technical data and rights to that data which are described in relation to the technical design and implementation as well as cost, schedule, performance, and risk in this section. Data related topics are described such as:

a. Compatibility requirements with DoD computing infrastructure.

b. Compatibility requirements with DoD physical infrastructure.

c. Description of drawings, practices, procedures and deliverables.

d. Hardware and software information

3.8 Human System Integration (HSI). As part of SE, the contractor shall integrate consideration for the human part of the system into the design and operations of the system by inserting into manpower, personnel, training, human factors engineering, environment, safety, occupational health hazards, and personnel survivability areas. (Describe the Manpower, Personnel and Training and Education requirements for a cybersecurity workforce needed in the Cybersecurity section 3.11)

3.9 Electromagnetic (EM) Spectrum Requirements and Electromagnetic Environmental Effects (E3). For spectrum dependent systems, the contractor shall identify what frequency assignments and spectrum certifications such as DD Form 1494 are needed. E3 control is concerned with proper design and engineering to minimize the impact of the EM environment on equipment, systems, and platforms. See standards and handbooks such as MIL-STD-461 in ASSIST.

3.10 Technical Reviews and Updates. The contractor shall provide SE and technical reviews that include technical and programmatic cost, schedule and performance status and risks. These reviews shall be in coordination with other required reviews and meetings in the SOW to increase coordination and reduce duplication.

a. CDRL Deliverable(s)

b. Conference Agenda.

c. Presentation Material.

d. Report, Record of Meeting / Minutes.

3.11 Cyber Security. The contractor shall ensure procedures and processes are in place for the protection of DoD program information residing on or transiting DoD and corporate networks and information systems. The objective is to protect DoD information, not just DoD systems, and it relates to all programs, not just those Information Technology (IT) focused.

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Address cybersecurity workforce challenges and efforts designed to improve Manpower, Personnel, Training and Education in a challenging cyber environment. Describe the type of workforce available to work on cyber security issues.

3.12 Configuration Management. The contractor shall document life cycle CM planning and provide CM program milestones and schedules to monitor program status. Implement an internal CM system for the control of all configuration documentation, physical media, and physical parts. For software, the system will address the evolving configuration and support environments (engineering, implementation, and test) used to generate and test the product.

3.13 Configuration Change. The contractor shall establish and maintain a Configuration Status Accounting (CSA) database. All baselines and changes must be documented in the database. Provide CSA reporting in accordance with the guidelines in section 7 "Configuration Status Accounting" in MIL-HDBK-61. Provide the traceability of all changes from the original baseline configuration documentation of each configuration item. (Note this content will be listed in a CDRL/DID)

a. CDRL Deliverable(s):

b. Configuration Status Accounting Report

3.14 Packaging Handling, Storage and Transportation (PHST). The contractor shall package and handle hardware and related parts in accordance with MIL-STD-2073-1 DoD Standard Practice for Military Packaging.

3.15 Diminishing Manufacturing Sources and Material Shortage (DMSMS). The contractor shall manage obsolescence over the entire period of the contract, and not withstanding any obsolescence issues or problems, the contractor remains responsible for meeting all performance and other requirements of this contract.

a. CDRL Deliverable(s):

b. Annual Obsolescence Report

3.16 Physical Configuration Audit. The contractor shall conduct a Physical Configuration Audit (PCA) jointly with the Government, as well as develop and deliver a Configuration Audit Plan. (CDRLA002) At the completion of PCA and all action items are closed, the contractor will develop and deliver a Configuration Audit Summary Report. (CDRLA018)

a. CDRL Deliverable(s):

b. Configuration Audit Summary Report (Physical)

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c. Configuration Audit Plan

3.17 Provisioning Items Ordering Spares. The contractor shall deliver the spare parts for provisioning orders. Provisioning Items Ordering (PIO) will be ordered by the Government in accordance with the PIO CLIN in the contract which is defined upon contract award.

(Note If cited elsewhere in the RFP/contract, should not be repeated in the SOW)

3.18 Reliability and Maintainability Program. The contractor shall create and maintain a Failure Reporting and Corrective Action System (FRACAS) to document all problems found during the manufacturing, fabrication, assembly, test, operation, and maintenance aspects of the system life cycle for each system produced.

a. CDRL Deliverable(s):

b. FRACAS Report

3.19 Test and Certification. The contractor shall submit a Production Test Plan, which will address Low-Rate Initial Production (LRIP) and Full Rate Production (FRP) test events.

a. CDRL Deliverable(s):

b. Production Test Plan

4. NOTES

4.1 Definitions. Provide definitions of key terms such as:

Request for Variance (RFV) - Is the term for what is formerly known as a Request for Deviation (RFD) or a RFW. A RFV enables the Government to determine the impact on performance, operational readiness, logistics support or other affected areas.

FIGURE 6. Notional example of STATEMENT OF WORK EXAMPLE

5.2.3 Services (non-personal). The product of non-personal services is the result of work tasks being performed. The requirements that establish the work must be defined in terms of work words and not product words. If the work to be performed is painting a building, the task must define what is to be painted and to what standards. The product of such a contract is obviously a building painted and completed by a certain time. If the SOW is prepared properly, contractor monitoring can be kept to a minimum as long as the task is completed on time and within cost. The Government has the requirement to inspect the product and either

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accept or reject it based on the contractor's conformance to the prescribed work requirement. The wide variety of non-personal services requirements cause this type of contract to take on many forms. However, in all applications, two factors are important to ensure that the services purchased are indeed- non-personal. These factors are: (a) the SOW must establish explicitly what work is to be done and require the delivery of a product or result other than periodic progress reports and (b) the contractor's employees must not be supervised or controlled by the Government during the execution of the work and production of the product or result. In this regard, the SOW must be explicit, inclusive and comprehensive in prescribing the work requirements. For a more complete discussion of a personal versus a non-personal services contract, refer to DFARS 237.104.

5.2.4 Terminology. A frequent problem encountered in defining the tasks in a SOW is the use of non-specific words and phrases such as: “any”- “assist”- “as required”- “as applicable/as necessary” and “as directed.” Do not use any of these words. The contractor needs specific tasks in order to estimate and price the work, and allocate the necessary resources for each task. This results in better proposals and executable programs. The following rationale for precluding their use is provided:

a. Any. "Any" is an ambiguous word. Authors may intend it to denote "plurality" and readers may interpret it to denote "oneness”. Also, when "any" is used to describe the selection of items from a list, it's the reader who does the selecting, not the author. Which items and how many the reader selects are beyond the control of the author.

b. Assist. “Assist” connotes personal services. It infers working side-by-side, being subject to supervision. The word is totally undefined in terms of identifying the work and its range and depth. Spell out explicitly what the contractor must do.

c. As Required. The result of this approach is an undefined work condition. It has no expressed limitations. It places the Government in a position of not expressing its minimal needs. It could lead to a debatable condition concerning the contractor's compliance with the contract or order. The SOW must be declarative as to its minimal needs. Anything required by the Government should be detailed in this SOW and other applicable sections of the contract itself.

d. As Applicable / As Necessary. If the Government does not know what is necessary or applicable, it must not leave to the contractor the responsibility for determining the minimal needs of the contract. The SOW should forthrightly state the requirements so that the contractor can comply with the requirement using their best efforts and expertise to accomplish the tasks.

e. As Directed. This condition, as a part of a work task in an SOW, connotes a personal services situation in which the contractor is placed under direct supervision. "When directed” may be used in conjunction with a task order contract to indicate that specific tasks may be initiated at various times during the period of contracted performance.

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f. Including but not limited to. This term is generally inserted when the drafter is unsure of requirement or criteria. However, it creates an unspecific requirement which creates ambiguity. Only list known requirements.

g. Etc. Abbreviations such as this also introduces potentially more unidentified ambiguous requirements.

5.2.5 Word usage. Another area of concern in establishing the SOW for non-personal services is the overuse of the words and phrases "support" and "engineering and technical services":

a. Support is an ambiguous term. Specify the specific type of support needed.

b. The terms "engineering and technical services" encompass a broad area of expertise. The SOW must state the minimal needs, even if it means broadening the work limitations to cover anticipated work tasks. For clarification, the SOW may include some examples of typical work to be done.

5.2.6 Language style. SOW requirements should be written in language understandable to all potential program participants. Clear language should avoid jargon or specialized terms unless defined or commonly understood within the field.

5.2.6.1 Requirements. Requirements should be stated explicitly in a topical, logical, chronological, or similarly structured order, avoiding words that allow for multiple interpretations.

5.2.6.2 Use technical language sparingly. Use technical language sparingly with simple wording predominating in concise sentences.

5.2.6.3 Use of "shall" or "must" and "will". Use "shall" or "must" whenever a provision is mandatory based upon guidance from the contracting office. Usage of "shall" or "must" should be consistent throughout the Statement of Work.

a. "Will" expresses a declaration of purpose or intent on the part of the Government; for example, "The Government will review all recommendations and provide direction within thirty calendar days."

b. Use active rather than passive voice; for example, "The contractor shall establish a program", not "A program shall be established by the contractor"

c. Employ verbs that clearly identify work and performance task requirements. When selecting the appropriate word that properly expresses the degree of contractor involvement, the SOW author must define the total nature of the work requirement explicitly. (See APPENDIX A for examples of Work Words)

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5.2.6.4 Ambiguity. Avoid using "Any," "Either," "And/Or," as these words imply that the contractor can make a choice which may not support the intent of the SOW. Refrain from using pronouns; instead, repeat the noun to ensure clarity. Terminology will be consistent throughout the SOW. When referring to a specific item, use the same phrase or word, particularly when referring to technical terms and items. Where words can be spelled in several different ways, employ the most common spelling. Make every effort to avoid ambiguity (See APPENDIX B).

5.3 Statement of Objectives (SOO) Method.

5.3.1 SOO introduction. The SOO is a Government prepared document incorporated into the RFP that states the overall solicitation objectives. It can be used in those solicitations where the intent is to provide the maximum flexibility to each offeror to propose an innovative development approach. Offerors use the RFP, product performance requirements, and SOO as a basis for preparing their proposals including a SOW and CDRL. Note: The SOO is not retained as a contract compliance item.

5.3.2 SOO purpose. The program SOO should provide the basic, top level objectives of the acquisition and is provided in the RFP in lieu of a Government written SOW. This approach provides potential offerors the flexibility to develop cost effective solutions and the opportunity to propose innovative alternatives meeting the stated objectives. It also presents the Government with an opportunity to assess the offeror's understanding of all aspects of the effort to be performed, by eliminating the 'how to' instructions to accomplish the required effort normally contained in the SOW the Government provides to prospective offerors.

5.3.3 SOO content. The Government may include a SOO as part of the RFP, listed in Section J (see Figure 1), attached at the end of the RFP, or referenced in Section L and/or M, and defining the top level program objectives. Alternatively, the SOO may be placed in Section L of the RFP (e.g., as an annex).

5.3.3.1 The SOO compatibility. The SOO is developed to be compatible with the mission need statement (MNS), operational requirements document (ORD), technical requirements from the system requirements document (SRD)/systems specification, and the WBS/dictionary.

5.3.3.2 The SOO product-oriented goals. The SOO should address product-oriented goals rather than performance requirements. SOOs are normally in the 2-4 page range. The SOO is not a one-for-one replacement of the SOW. Sections L and M should logically follow with instructions to the offerors asking for proposal information supporting the objectives and evaluation criteria that clearly identify how the offerors' responses will be evaluated. Each portion of the RFP must support one another.

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5.3.3.3 How the SOO is used. The key is to keep the SOO clear and concise and to provide potential offerors with enough information and detail to structure a sound program, designed to be executable and satisfy Government objectives. The SOO is used, along with other information and instructions in the RFP, by offerors to develop the contract WBS, SOW, and other documents supporting and defining the offerors proposed effort. SOO content depends both on the type of program and on the program phase. It is possible that a "mature" program, such as one which has been fielded for some time, could require slightly more detail in the SOO to properly integrate with other, ongoing parts of the program. The SOO is replaced at contract award in the contract by the proposed SOW.

1. Program Objectives
   a. Multi-phased program
   b. One program, multi-contractor
   c. One phase contract

2. Contract Objectives (WBS 00000)
   a. Objectives in paragraph 2.0 are traceable to Level 0 WBS
   b. For multi-phase programs, describe objectives for each phase in a format similar to an indentured list (clearly indicate which phases are part of the anticipated contract and any phases that will involve separate contracts).

Note: *The SOO should not address each WBS element, but each WBS element should be traceable to something in the SOO. For example, a SOO may instruct the bidder to address their engineering approach. That is not a particular WBS element, but several WBS elements might be created to breakout the engineering tasks. Generally, a broad and sweeping objective statement should trace to more WBS elements than would be the case for a very narrowly focused objective statement.*

5.3.4 SOO development approach. A systematic process is essential for SOO development. The following steps are an integral part of that process:

a. Conduct market research to determine whether commercial items or non-developmental items are available to meet program requirements.

b. Review the requirement documents which authorize the program and define its basic objectives. Complete a risk assessment and expound the basic objectives of the program to incorporate the major technical and programmatic risks.

c. Review the various DoD/services/joint services requirements documents for program management, acquisition and control impact.

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d. Prepare a bibliography citing the specific portions of all applicable governing instructions, directives, specifications and standards with which the program must comply. Keep these requirements to the absolute minimum.

e. Categorize the work described by the program WBS into that which will be done in-house and the objectives of that work that need CWBS to be contracted.

f. For each RFP/contract defined, prepare a SOO from the objectives identified.

5.3.5 SOO-RFP relationships.

a. Section L: Section L of the RFP must include instructions to the offeror that require using the SOO to construct and submit a SOW and CDRL. An example of such wording follows:

The SOO, included as (cite location of SOO in the RFP), provides the Government's overall objectives for this solicitation. Offerors shall use the SOO, together with other applicable portions of this RFP, as the basis for preparing their proposal, including the CWBS, SOW and CDRL. The offeror shall ensure all aspects of the SOO are addressed. The SOW specifies in clear, understandable terms the work to be done in developing or producing the goods to be delivered or services to be performed by the contractor. Preparation of an effective SOW requires both an understanding of the goods or services that are needed to satisfy a particular requirement and an ability to define what is required in specific, performance based, and quantitative terms. The offerors understanding of both required goods/services, and work effort required to accomplish should be fully demonstrated in the offerors' proposed CWBS, SOW, and CDRL. For complex interrelationships among RFP/contract documents, use of a cross-reference matrix may be helpful.

The offeror shall use their proposed SOW to prepare a CDRL including appropriately tailored DID references. The requirements listed below (if any) are known minimum Government data requirements. The offeror may include additional data requirements. All data requirements should be traceable to specific tasks defined in the SOW. Specified on DD Form 1423.

1. (Cite minimum data requirements here if any)
2. . . .
3. . . .

(End of Section L example wording.)

b. Section M: Evaluation Factors for Award should include sufficient criteria to:

1. Evaluate the offeror's ability to successfully achieve the SOO objectives,
2. Ensure a sound approach is proposed
3. Verify that all requirements can be met.

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The Government's intention to evaluate the proposed SOW should be stressed in both Section L and Section M. The offeror's proposed CWBS, SOW, and CDRLs should be evaluated as critical elements in assessing the offerors understanding of both required goods/services, and work effort required to accomplish them.

6. NOTES

6.1 Intended use. Used in the preparation of a SOW.

6.2 Subject term (key word) listing:

Contract Data Requirements List (CDRL)

Contract Line Item Number (CLIN)

Data Item Description (DID)

Performance Work Statement (PWS)

Request for Proposal (RFP)

Statement of Objective (SOO)

Work Breakdown Structure (WBS)

6.3 Changes from previous issue. Marginal notations are not used in this revision to identify changes with respect to the previous issue due to the extent of the changes.

6.4 Additional resources. The following set of documents can assist in the development of the SOW:

The listed Parts of the FAR and Defense Finance Accounting Service (DFAS) have applicability to all Statements of Work developed for DoD acquisitions and should be referred to during the development of a SOW.

Adaptive Acquisition Framework - A set of acquisition pathways to enable the workforce to tailor strategies to deliver better solutions faster, see https://aaf.dau.edu/.

FAR Part 10/DFARS Part 210 - Prescribes when Market Research is required for Federal (FAR) and Defense (DFARS) acquisitions. Essentially, Market Research is required before the development of any new requirements to be used in the contracting for supplies and services. Market Research must be tailored to the scope and purpose of the acquisition. Additional guidance on conducting and tailoring Market Research can be found in SD-5 Market Research (available at https://quicksearch.dla.mil/)

FAR Part 11/DFARS Part 211 - Prescribes rules and preferences for describing agency needs (stating requirements) in Federal (FAR) and Defense (DFARS) acquisitions. Agency needs as included in the Statement of Work, should reflect a balance between User's Needs (what is wanted) and Market Research (what is available or feasible).

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DoDI 7000.14 – Department of Defense Financial Management Policy.

The listed DoDI's provide policies for the development, management, and documentation of Defense Acquisition Systems and may be useful in understanding the purpose and content of the documentation for a Defense System.

DoDI 5000.02 - Provides high-level guidance and descriptions of the Adaptive Acquisition Framework Pathways available for the development of Defense Systems. https://esd.whs.mil/dd/

DoDI 5000.74 - Provides requirements and responsibilities for managers of the acquisition of services (as opposed to supplies) within the Department of Defense. Typically, a PWS is used in lieu of a SOW for the Acquisition of Services.

DoDI 5000.75 - Provides requirements and Program Management roles and responsibilities in the development of Defense Business Systems. DoDI 5000.75 also provides requirements for, and a structure for, documentation for that acquisition. SOW should be aligned and consistent with program documentation (e.g., Acquisition Strategy).

DoDI 5000.81 - Identifies the types and sources of Urgent Operational Needs (UONs) and provides requirements and Program Management role and responsibilities in the development and fielding systems to meet those UONs. DoDI 5000.81 also provides requirements for, and structure for documentation for that acquisition. Statements of Work should be aligned and consistent with program documentation (e.g., Acquisition Strategy).

DoDI 5000.80 - Provides requirements definitions and procedures for the conduct of Middle Tier of Acquisition (Rapid Prototyping or Rapid Fielding) program. DoDI 5000.80 also provides Program Manager and Product Support Manger roles and responsibilities and the associated procedures associated with the Middle Tier of Acquisition. SOW should be aligned and consistent with program documentation (e.g., Acquisition Strategy).

DoDI 5000.85 - Provides requirements and Program Management roles and responsibilities in the development of systems as Major Capability Acquisitions within the Department of Defense. DoDI 5000.85 also provides requirements and structure for documentation for the acquisition. SOW should be aligned and consistent with program documentation (e.g., Acquisition Strategy).

DoDI 5000.88 - Provides policy and procedures for conducting a comprehensive engineering program for defense systems, including the engineering management activities necessary to guide the development of defense systems. Engineering tasks included within a SOW should be aligned with the engineering program documentation developed in accordance with DoDI 5000.88 (e.g., Systems Engineering Plan).

DoDI 5000.89 - Provides guidance for the planning and execution of Test and Evaluation in support of Defense Acquisition Programs. Test and Evaluation tasks included within a SOW should be aligned and consistent with program test and evaluation documentation developed in accordance with DoDI 5000.89(e.g., Acquisition Strategy, Test and Evaluation Master Plan).

DoDI 5010.44 - Provides policy for the development and implementation of Intellectual Property strategies. Tasks related to the acquisition of Intellectual Property in Statements of

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Work should be aligned and consistent with program documentation developed in accordance with DoDI 5010.44 (e.g., Intellectual Property Strategy).

DoDI 5000.82 - Provides policies and procedures for the Acquisition of Information Technology within the Department of Defense. DoDI 5000.82 also identifies unique program documentation associated with the acquisition of Information Technology. SOW tasks associated with the acquisition of Information Technology within SOW should be aligned and consistent with applicable program documentation developed in accordance with DoDI 5000.82 (e.g., Acquisition Strategy, Cybersecurity Strategy).

DoDI 5000.86 - Provides requirements and identifies key acquisition documents associated with Acquisition Intelligence. SOW including Acquisition Intelligence related tasks should be aligned and consistent with program documentation developed in accordance with DoDI 5000.86 (e.g., Acquisition Strategy, Program Protection Plan)

DoDI 5000.83 - Establishes policy, assigns responsibilities, and provides procedures for science and technology (S&T) managers and engineers to manage system security and cybersecurity technical risks. DoDI 5000.83 also identifies considerations to be included in the development of the Science and Technology and Program Protection Plans, SOW tasks associated with Science and Technology Protection or Program Protection should be aligned and consistent with applicable program documentation developed in accordance with DoDI 5000.83 (e.g., Program Protection Plan)

DoDI 5000.84 - Provides policy for the conduct of Analyses of Alternatives within the Department of Defense. SOW associated with the conduct or support of an Analysis of Alternatives (AoA) should be consistent with the approved program documents developed in accordance with DoDI 5000.84 (e.g., Initial Capabilities Documents (ICD), AoA Study Guidance, and AoA Study Plan).

DoDI 5000.87 - Provides instruction for the "Operation Of The Software Acquisition Pathway". The software acquisition pathway is for the timely acquisition of custom software capabilities developed for the DoD. Software programs that meet the definition of a covered Defense Business System (DBS) should use the DBS pathway in accordance with DoDI 5000.75 but may elect to incorporate this pathway for custom developed software. Programs executing the software acquisition pathway are not subject to the Joint Capabilities Integration and Development System (JCIDS). Programs executing the software acquisition pathway will not be treated as major defense acquisition programs even if exceeding thresholds in Section 2430 of Title 10, United States Code. See Section 800 of Public Law 116-92.

DoDI 5000.90 - Prescribes policy, responsibilities, and procedures for the implementation of Cybersecurity within DoD acquisitions. SOW that include Cybersecurity tasks should be aligned to the program documentation developed in accordance with DoDI 5000.90 (e.g., Cybersecurity Strategy (CSS), Program Protection Plan.)

DoDI 5000.91 - Product Support Management for the Adaptive Acquisition Framework, SOW that include Product Support and Product Support Management tasks should be aligned to the program documentation developed in accordance with DoDI 5000.91.

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SAE-GEIA-859 - Data Management Standard

(Note: The SAE-GEIA-859, has been adopted by the DoD as the Data Management Standard. Copies of these documents are available online at https://aaf.dau.edu/policies/).

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APPENDIX A

WORK WORDS/PRODUCT WORDS

A.1 Scope. Appendix A is intended to describe using key words, work words and, product words in the preparing the SOW.

A.2 Select the key word. Select the key word that properly describes the degree of contractor involvement. Specify what is to be done and the total nature of the work requirement. The word list provided in this Appendix is not complete but is provided to stimulate the thinking of the SOW writer by pointing out the critical differences in the meaning of work words versus the product words identified in connection with deliverable data.

A.3 Work words. When selecting the key work word that properly expresses contractor's involvement, the SOW writer must define explicitly the total nature of the work requirement in terms of what is to be done. In some cases, the "why" or the application of the results of the performed work may be stated if it clarifies the requirement. The following sample list contains words that have the inherent value of work. This list is offered as a reminder of the various shades of meaning conveyed by choice of words.

Analyze	(solve by analysis)
Annotate	(provide with comments)
Ascertain	(find out with certainty)
Attend	(be present at)
Audit	(officially examine)
Build	(make by putting together)
Calculate	(find out by computation)
Consider	(think about, to decide)
Construct	(put together; build)
Control	(direct; regulate)

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APPENDIX A

(Continued)

Contribute	(give along with others)
Compare	(find out likeness or differences)
Create	(cause to be; make)
Determine	(resolve; settle; decide)
Differentiate	(make a distinction between)
Deliverable	(any unique and verifiable product, result, or capability to perform a service that is required to be produced to complete a process, phase, or project)
Develop	(bring into being or activity)
Define	(make clear; settle the limits)
Design	(perform an original act)
Erect	(put together; set upright)
Establish	(set up; settle; prove beyond dispute)
Evaluate	(find or fix the value of)
Evolve	(develop gradually, work out)
Examine	(look at closely; test quality of)
Explore	(examine for discovery)
Extract	(take out; deduce, select)
Fabricate	(build; manufacture, invent)
Form	(give shape to; establish)
Formulate	(to put together and express)
Generate	(produce, cause to be)
Identify	(to show or to find)
Implement	(to carry out, put into practice)
Install	(place; put into position)
Inspect	(examine carefully or officially)
Institute	(set up; establish, begin)
Interpret	(explain the meaning of)
Inquire	(ask, make a search of)
Integrate	(to add parts to make whole)
Investigate	(Search into; examine closely)

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APPENDIX A

(Continued)

Judge	(decide; form an estimate of)
Make	(cause to come into being)
Maintain	(to keep in an existing state, to continue in, carry on)
Manufacture	(fabricate from raw materials)
Modify	(to change, alter)
Monitor	(to watch or observe)
Notice	(comment upon, review)
Observe	(inspect, watch)
Originate	(initiate, to give rise to)
Organize	(integrate, arrange in a coherent unit)
Perform	(do, carry out, accomplish)
Plan	(devise a scheme for doing, making, arranging activities to achieve objectives)
Probe	(investigate thoroughly)
Produce	(give birth or rise to)
Product	(an artifact that is produced, is quantifiable, and can be either an end item in itself or a component item)
Product Scope	(the features and functions that characterize a product, service, or result)
Program	(related project, subsidiary programs, and program activities that are managed in a coordinated manner to obtain benefits not available from managing them individually)
Project	(temporary endeavor undertaken to create a unique product, service, or result)
Project Scope	(work performed to deliver a product, service, or result with the the specified features and functions)
Pursue	(seek, obtain or accomplish)
Reason	(think, influence another's actions)
Resolve	(reduce by analysis, clear up)
Record	(set down in writing or act of electronic reproduction of communications)
Recommend	(advise, attract favor of)
Requirement	(a need, desire, or want to be satisfied by a product, service, or result)
Review	(inspection, examination or evaluation)
Revise	(to correct, improve)

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APPENDIX A

(Continued)

Study	(careful examination or analysis)
Seek	(try to discover; make an attempt)
Search	(examine to find something)
Scan	(look through hastily, examine intently)
Scope	(the sum of the products, services, and results to be provided as a project. See also project scope and product scope)
Screen	(to separate, present, or shield)
Solve	(find an answer)
Stakeholder	(an individual, group, or organization that may affect, be affected by, or perceive itself to be affected by a decision, activity, or outcome or a project, program)
Statement Of Work	(a narrative description of products, services, or results to be delivered by the project)
Test	(evaluate, examine)
Trace	(to copy or find by searching)
Track	(observe or plot the path of)
Update	(modernize, make current)

A.4 Product word list. Although Non-personal Services contracts may not result in data as a deliverable product, a large portion do. This list of product words is provided to assist in identifying those products.

Agenda	Manuals
Audio visual aids	Manuscript
Books	Materials
Cards	Minutes
Certificates	Outlines
Charts	Proposals
Databases	Pamphlets
Data centers	Plans
Decks	Portals
Documentation	Procedures
Publications	Recommendations

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APPENDIX A

(Continued)

Drawings
Drives
Equipment
Files
Findings
Forms
Guides
Graphics
Hardware
Illustrations
Lists
Ledgers
Logs
Records
Recordings
Reproducible
Requests
Sheets
Software
Specifications
Standards
Systems
Tapes
Web sites

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APPENDIX B

LIST OF PHRASES HAVING MULTIPLE MEANINGS

B.1 Scope. Appendix B is intended to provide examples of phrases to avoid that have multiple meanings.

B.2 List of phrases having multiple meanings. This list is provided as an example of those to be avoided. This list of phrases having multiple meanings is provided as an example of those to be avoided.

To the satisfaction of the contracting officer,

As determined by the contracting officer,

In accordance with instructions of the contracting officer,

As directed by the contracting officer,

In the opinion of the contracting officer,

In the judgment of the contracting officer,

Unless otherwise directed by the contracting officer,

To furnish if requested by the contracting officer,

All reasonable requests of the contracting officer should be complied with,

Photographs should be taken when and where directed by the contracting officer.

In strict accordance with,

In accordance with best commercial practice,

In accordance with best modern standard practice,

In accordance with the best engineering practice,

Workmanship should be of the highest quality,

Workmanship should be of the highest grade,

Accurate workmanship,

Securely mounted,

Installed in a neat and workmanlike manner,

Skillfully fitted,

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APPENDIX B

(Continued)

Properly connected,

Properly assembled,

Good working order,

Good materials,

In accordance with applicable published specifications,

Products of a recognized reputable manufacturer,

Tests will be made unless waived,

Materials should be of the highest grade, free from defects or imperfections, and of grades approved by the contracting officer.

Kinks and bends may be cause for rejection,

Carefully performed,

Neatly finished,

Metal parts should be cleaned before painting,

Suitably housed,

Smooth surfaces,

Pleasing lines,

Of an approved type,

Of standard type,

Any phrases referring to "The Government inspector."

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CONCLUDING MATERIAL

Custodians:

Army – CR

Navy – EC

Air Force – 10

Preparing activity:

Navy – EC

(Project: MISC-2023-002)

Review activities:

Army – AT

Navy – SH, AS, MC, YD

Air Force – 11, 13

NOTE: The activities listed above were interested in this document as of the date of this document. Since organizations and responsibilities can change, you should verify the currency of the information above using the ASSIST Online database at https://assist.dla.mil.

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